

LETTER TO YOUR MLA ABOUT SECTION 15(4) — HOW TO USE IT

Episodic disability and AR 96/2026 s.15(4) · Version 1.0, September 2026 (Classification: Public)

WHAT THIS FORM IS FOR

This is a ready-written letter to your MLA about **section 15(4) of Alberta Regulation 96/2026**. Almost all of it is already written. You fill in the shaded boxes and send it.

The point of the letter is a bind in the wording. Section 15(4) lets a director refuse, suspend, vary or discontinue an ADAP benefit if, in the director's opinion, a person has reduced or terminated reasonable employment. Section 16(a) separately requires you to *report* when your employment ends. So when a flare costs you hours, the report you are obliged to make is the same fact that can be used to cut you.

That power applies to ADAP. It does not apply to people who stayed on AISH — and tens of thousands were moved between the two on 2 July 2026 without being assessed.

BEFORE YOU FILL THIS OUT

You do not need to understand the regulation to send this. The legal argument is already made in the letter. Your part is the lived part, and that is the part nobody else can write.

Find your MLA first. You need their name for the greeting. If you do not know who yours is, your municipality or a search on the Legislative Assembly site will tell you from your postal code.

There is a longer version of this letter. If you want the background and the regulation explained before you send anything, use *If Your Condition Flares, Read This*, which carries the same letter with the explanation in front of it. This file is the letter on its own, for people who already know what they are sending.

WHAT EACH SECTION IS ASKING FOR

In plain terms, section by section. You do not have to read it all — find the part you are stuck on.

The shaded boxes — there are only four things to fill in

Your MLA's name and the date at the top. Then the two open boxes in the middle, then your name, city and email at the bottom. Everything else is written for you and should not be changed.

“I live with this condition, and it is episodic”

Name the condition. One line is enough. You are not making a medical case here, you are establishing that your condition comes and goes rather than sitting still.

“This is what a flare does to me” — the box that matters

Up to 2500 characters, and the room is there because this is the part that does the work. Describe a flare in ordinary, specific terms: what you cannot do, for how long, and whether you can predict it. Unpredictability is the heart of the argument — an employer can adjust a chair, but nobody can schedule around a day you did not know was coming. Concrete beats general. What happened last time is worth more than what usually happens.

Your name, city and email at the end

An MLA answers constituents. The city or town is what identifies you as one. The letter asks for a reply in writing, which is why the email matters.

WHERE THIS GOES AFTER YOU SIGN IT

Your MLA.

This letter is addressed to your own MLA and that is where it goes. Email is fine and leaves a record. Every MLA has a constituency office address and email published by the Legislative Assembly.

Send a copy to the Minister.

The companion version of this letter directs people to send it to their MLA *and* to the Minister of Assisted Living and Social Services. A letter that only one office sees is easier to file away.

Keep your own copy and note the date you sent it.

If you later end up appealing anything to do with s.15(4), the fact that you raised it in writing beforehand, and when, is part of your record.

WHAT HAPPENS NEXT

The letter asks for a reply in writing. Constituency offices do generally answer, though it can take weeks. If you get nothing after a month, send it again and say it is a second request.

A reply that only restates what ADAP is has not answered the question. The letter asks four specific things, including why this power applies to ADAP clients and not to AISH clients. If those go unanswered, that silence is worth noting and worth saying so in a follow-up.

Keep whatever you get back. Replies from MLAs have a way of becoming useful later.

WHAT NOT TO DO

Do not edit the parts that are already written. The quoted regulation text is verbatim from AR 96/2026 and the argument is built on the exact wording. Changing it weakens it.

Do not send this to the campaign. ADSB cannot send it on your behalf, and it is stronger arriving from a constituent than from a third party.

Do not attach medical records. You are describing your situation, not proving it. Nobody at a constituency office needs your diagnosis.

Regulation text in the letter is quoted verbatim from AR 96/2026, in force 2 July 2026. General information, not legal advice.

LETTER TO YOUR MLA

Fill in the shaded boxes. Everything else is written for you.

Your MLA's name

Date

Subject: AR 96/2026 s.15(4) — my disability flares, and this regulation penalises that

Dear _____,

I am your constituent. I was moved from AISH to the Alberta Disability Assistance Program on July 2, 2026. Nobody assessed me. No one looked at my file. It happened by operation of law.

I am writing about section 15(4) of Alberta Regulation 96/2026, which provides:

“A director may refuse, suspend, vary or discontinue a benefit provided under section 3.02 of the Act... if, in the director's opinion, the applicant or client has (a) refused to seek or accept or has reduced or terminated the applicant's or client's reasonable employment, or (b) refused or neglected to participate in or make use of an employment support.”

Section 3.02 is ADAP. This power does not apply to people who stayed on AISH. And section 16(a) requires me to notify a director when my employment ends.

My situation.

I live with this condition, and it is episodic:

This is what a flare does to me:

Up to 2500 characters. Take the room you need to describe a flare in your own words.

Here is the bind the wording puts me in. When I flare, I must manage my employer under their rules — which may demand a doctor's note that a flare makes impossible to obtain. And separately, section 16(a) requires me to report to ADAP that my employment was reduced. That same report is the fact section 15(4) lets them cut me for. One collapse, two systems, and the second report is a report against myself.

The regulation does not distinguish between someone who will not work and someone who cannot. There is no exemption for illness anywhere in it. And “reasonable employment” is not defined. Because it is undefined, it takes its ordinary meaning — fair, practical, within the limits of reason. By that plain meaning, it is not reasonable to expect someone whose disability is episodic to hold employment their body periodically makes impossible, or to prove during a collapse why they could not work.

What I am asking you to do:

1. Raise section 15(4) with the Minister of Assisted Living and Social Services.
2. Ask what protection exists in law — not policy — for a person whose employment is reduced by illness rather than by choice.
3. Ask what “reasonable” means, since it is nowhere defined, and how a standard of reasonableness can fairly be applied to people whose disabilities are episodic.
4. Ask why this power applies to ADAP clients and not to AISH clients, when tens of thousands of us were moved between the two without ever being assessed.

LETTER TO YOUR MLA (continued)

Fill in the shaded boxes. Everything else is written for you.

I am not asking for special treatment. I am asking not to be punished for having the condition that qualified me in the first place.

Please reply in writing.

Sincerely,

Your name

Your city or town

Your email

The Alberta Disability System Breakdown — Advocate

St. Albert, Alberta | July 2026

albertadisabilitybreakdown@outlook.com

General information, not legal advice. Regulation text quoted verbatim from AR 96/2026, in force July 2, 2026.